



Delaware-Muncie Metropolitan Plan Commission Board of Zoning Appeals June 25th, 2020

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=_hCfyo-Fl2I
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Target Category	delaware_county

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Delaware-Muncie Metropolitan Board of Zoning Appeals Meeting Report

Meeting Date: June 2020

Body: Delaware-Muncie Board of Zoning Appeals

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the regular monthly meeting to order at [00:00:12](#), noting that the session was being broadcast online via Facebook Live and streamed due to public health protocols.
- **Attendance:**
 - **Members Present:** Mr. Bishop, Ms. Mathewson, Mr. Watson, Mr. Fowler.
 - **Members Absent:** Two members out of state/town, plus one existing vacancy due to resignation (totaling 7 authorized seats).
 - **Presiding Officer:** Mr. Fowler.
 - **Staff Present:** Marta (Planning/Zoning staff).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the recitation of the Pledge of Allegiance at [00:00:19](#).

- **Approval of Minutes:** The regular monthly meeting minutes from May 2020 were presented for consideration. A motion to approve was made and seconded, followed by a roll call vote.
 - **Action & Vote Disposition:** Passed Unanimously (Roll call: Mr. Bishop <U+2013> Yes, Ms. Mathewson <U+2013> Yes, Mr. Watson <U+2013> Yes, Mr. Fowler <U+2013> Yes).
 - **Board Operating Rules Announcement:** Staff clarified that official action by the 7-member board requires a minimum of 4 affirmative votes. Because only 4 members were present, any official decision required a unanimous vote among those in attendance, otherwise cases are automatically continued to the following month.
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4. Substantive Business & Board Action

- **00:04:18 PCA 11-20: Variance Request for Temporary Mobile Home Placement**
 - **Item Identifier & Title:** 00:04:18 PCA 11-20 <U+2013> Application by James B. Stonoff, Linda K. Stonehoff, and Grace Gray.
 - **Sponsor / Presenter:** Represented by the applicant/family.
 - **Deliberation Summary:** The applicants requested a variance from the Delaware County Comprehensive Zoning Ordinance to allow the temporary placement of a mobile home behind family property located at 9990 West County Road 700 South (Salem Township), to house and provide care for an ill family member, Grace Gray, who lacks a vehicle and has mobility issues. Staff noted that approved mobile homes are placed on an annual registry requiring yearly verification letters.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (4-0). Motion made to approve for temporary use for the duration of Grace Gray's occupancy/need. (Mr. Bishop <U+2013> Yes, Ms. Mathewson <U+2013> Yes, Mr. Watson <U+2013> Yes, Mr. Fowler <U+2013> Yes).
- **00:09:27 BZA 12-20: Variance of Use for Commercial Trucking Business & Storage in Farming Zone**
 - **Item Identifier & Title:** 00:09:27 BZA 12-20 <U+2013> Application by Manpreet Singh (8989 North Shaffer Road, Muncie, IN).
 - **Sponsor / Presenter:** Manpreet Singh.
 - **Deliberation Summary:** The applicant requested a variance of use from an 'F' Farming Zone to allow a trucking business, parking/storage for commercial vehicles (up to 15 trucks), and a small maintenance shop (proposed size adjusted during discussion to roughly 30x60 or 60x60 feet) on property located at 8989 North Shaffer Road (Hamilton Township). Board members and residents heavily questioned road capacity, noting that Shaffer Road is a minor county road not engineered to carry continuous semi-truck traffic. Discussion covered potential road bonds, maintenance cycles, fencing requirements, and noise/fumes. Staff reported

receiving 1 letter of support, 78 letters in opposition, and 14 phone calls expressing strong opposition.

- **Item-Specific Public Input (00:28:32 <U+2013> 00:46:35):**
 - *Stanley Geidel (00:28:32):* Spoke on behalf of the Country Village Creekwood neighborhood (350 homes), objecting strongly to commercial operations in a quiet residential/farming area and citing safety concerns for children walking/busing to Delta schools.
 - *Mitch Isaacs (00:32:01):* President of the Country Village Creekwood Neighborhood Association; highlighted neighborhood aesthetic standards, deteriorating road conditions, and prior unauthorized truck parking on the site.
 - *Norb Heben (00:33:50):* Noted over \$56 million in surrounding assessed property value at risk of depreciation, safety hazards on narrow roads, and contradictions in the application regarding acreage and truck counts.
 - *Lisa May (00:37:56):* Resident at 9610 North Shaffer; emphasized the farming character of the area and safety hazards for farm equipment and school children.
 - *Pam Carruthers (00:39:01):* Resident living directly across from the property driveway; testified about overnight noise, car haulers idling all night, knocked-over garbage cans, and heavy diesel fumes.
 - *Perry Carruthers (00:39:44):* Spoke on heavy trucking industry impacts, noting large rigs stretch upwards of 105 feet, generate loud noise, and impair residential access.
 - *Christy Mack (00:43:09):* Lifelong Shaffer Road resident; raised concerns regarding local wetlands, historical drainage/water table issues, and lack of specific answers from the applicant.
 - **Action & Vote Disposition:** Denied by Roll Call Vote (0-4). A motion to approve with conditions (including a road damage bond, a 60x60 building to shield 15 maximum trucks, indoor-only maintenance, and drainage plans) failed unanimously. (Mr. Watson <U+2013> No, Mr. Bishop <U+2013> No, Ms. Mathewson <U+2013> No, Mr. Fowler <U+2013> No).
 - **Subsequent Enforcement Action (00:56:45):** Following the denial, the board entertained a motion to direct the zoning administrator to enforce a **30-day compliance deadline** for clearing unauthorized commercial trucks from the property.
 - **Vote Disposition:** Approved by Roll Call Vote (4-0). (Mr. Watson <U+2013> Yes, Mr. Bishop <U+2013> Yes, Ms. Mathewson <U+2013> Yes, Mr. Fowler <U+2013> Yes). Staff outlined post-denial options available to the applicant (requesting a second hearing with new evidence, waiting one year, or filing a writ of certiorari in court within 30 days).
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5. Open Public Comment / Citizen Forum

(General citizen testimony was integrated directly into the contested public hearing for BZA 12-20 detailed above. No separate general citizen forum was held at the conclusion of the meeting.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - The presiding officer reminded attendees to disperse outside rather than congregating in hallways/stairwells due to public health considerations.
 - Contact information for Zoning Administrator Tom Fount (Building Commissioner) was provided for residents to report any future zoning violations or truck reappearances (747-7799).
 - **Adjournment:** A motion to adjourn was made and seconded at the close of business. *(Official timestamp for final adjournment not audibly stated on transcript, concluding immediately following the seconding of the adjournment motion).*
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